VOLUME 6 SURVEILLANCE

CHAPTER 9 PART 145 INSPECTIONS

Section 28 Surveillance and FAA Participation in an Aviation Authority Sampling Inspection System Team Visit in the United States

6-9-28-1 REPORTING SYSTEM(S). Use Safety Assurance System (SAS) automation and the associated Data Collection Tools (DCT).

6-9-28-3 OBJECTIVE. This section provides guidance to aviation safety inspectors (ASI) on conducting surveillance and inspections of an aviation authority (AA) Approved Maintenance Organization (AMO) located within the territories of the United States under Maintenance Implementation Procedures (MIP) of a Bilateral Aviation Safety Agreement (BASA). The Federal Aviation Administration (FAA) and the foreign AA have agreed to conduct surveillance on each other's behalf to ensure compliance with the respective regulatory requirements for maintenance. The Sampling Inspection System (SIS) inspection is to establish the open communication and continued confidence in the ability to comply with the requirements of the MIP and to ensure consistent application of the Maintenance Agreement Guidance (MAG). This section applies to Title 14 of the Code of Federal Regulations (14 CFR) part 145 repair stations located within the territories of the United States under the MIP of a BASA.

NOTE: ASIs use this section in conjunction with the current revision of the applicable MAG of the foreign country. The MAG supersedes this section if conflicts exist between the two documents.

6-9-28-5 BACKGROUND.

A. Conclusion of a U.S. MIP. The FAA and the AA base MIPs on an evaluation of 14 CFR parts 43 and 145, and the AA's national part 145 regulations governing AMOs. The SIS allows the FAA and the AA the ability to inspect each other's application of the MIP. The SIS benefits the FAA, the AA, and the certificate holder (CH) in understanding the differences between part 145 and the relevant foreign AA's part 145 regulations, and any procedural differences associated with implementation of the MIP. The conclusion of a MIP provides for:

1) The mutual acceptance of recommendations for certificating, renewing, or amending the certificate, and the documentation of surveillance of maintenance organizations.

2) Increased efficiency by reducing or eliminating duplicate surveillance and inspection while maintaining equivalent levels of safety (ELOS).

3) Building confidence in each other's internal quality control (QC)/quality assurance (QA) systems.

B. The MAG Document. The MAG is the procedural document that supports the MIP and defines the Special Conditions and activities as agreed upon by the FAA and the AA. The FAA and AA must be satisfied that the CH meets the conditions of the MIP and MAG.

NOTE: A listing of all countries that have a BASA with applicable MIPs and MAGs is located at https://www.faa.gov/aircraft/air_cert/international/bilateral_agreements/baa_basa_listing/.

C. Special Conditions. Special Conditions are requirements in either parts 43 and 145 or in the AA's national part 145 regulations that have been found, based on a comparison of the regulatory maintenance systems, not to be common to both systems and which are significant enough that they must be addressed. A part 145 repair station that performs work on aeronautical products subject to a MIP must comply with the AA Special Conditions. The FAA surveillance must include the AA Special Conditions as outlined in the applicable MIP.

6-9-28-7 AA SIS TEAM.

A. AA SIS Team Visit.

1) The AA SIS team will visit part 145 certificated repair stations (CRS) located in the United States that also hold a foreign part 145 AMO certificate. The purpose is to monitor the FAA's application of the MIP.

2) During the AA SIS team visits, FAA ASIs will serve as observers with the AA SIS teams. The FAA should make every effort to receive and cooperate with the AA SIS teams. The AA SIS team inspections may provide valuable information to the FAA and industry in support of the MIP.

B. AA SIS Team Inspection. The AA SIS team inspections are designed to establish the AA's continued confidence in the FAA's ability to comply with the requirements of the MIP and to ensure they are applied in a consistent manner.

1) The AA SIS team will spend a considerable amount of time at the responsible Flight Standards office reviewing CH records/files, the AA supplements to the Repair Station Manual (RSM), and closed enforcement actions taken by the FAA. The AA SIS team may also interview ASIs and their assistants to confirm they have applicable training and access to and knowledge of the applicable MAG.

2) When an AA SIS team inspects a CH, they will specifically inspect those areas referenced in the MIP as Special Conditions.

NOTE: The AA SIS team may also inspect for compliance with equivalent foreign part 145 regulations that are not Special Conditions. However, AA SIS teams normally limit inspections to the Special Conditions unless events lead them into additional areas. Communicate discrepancies that are uncommon to the AA Special Conditions to the Aircraft Maintenance Division (AFS-300) designated FAA Coordinator.

3) The AA SIS teams will also review the CH's methods and procedures used to maintain foreign aircraft and parts, as well as the items listed on the AA audit forms. The AA will use this information to evaluate the CH's compliance with the MIP.

C. SIS Team Members. The SIS teams will consist of:

1) Two AA-experienced Maintenance inspectors/surveyors and, if needed, additional staff.

2) The AFS-300-designated FAA Coordinator.

3) The AFS-300-designated FAA National Coordinator. This person may participate or serve as the designated FAA Coordinator when needed.

4) The applicable ASIs (Airworthiness/Avionics) assigned for CH responsibilities.

NOTE: For more information on the SIS, refer to the applicable MAG.

D. Unimpeded Access. For the purposes of surveillance and inspections, the FAA and AA will assist each other in gaining unimpeded access to repair stations subject to its jurisdiction. It is the responsibility of the CH to provide unimpeded access to all work areas having civil aviation application. The CH should ensure that, where possible, there is clear delineation between work areas with civil and military applications. The AA should have the same privileges as the FAA for access to the facilities.

E. Resolution of Issues. Joint cooperation and communication is an essential part of the inspection's success. Resolution of issues between the FAA and the AA will be made in accordance with the applicable MAG.

6-9-28-9 PREREQUISITES AND COORDINATION REQUIREMENTS.

A. Prerequisites:

- Knowledge of parts 43 and 145 and the applicable MAG.
- Previous experience with certification or surveillance of part 145 repair stations.
- Completion of FAA Course FAA21058, Certification and Surveillance of Part 145 Repair Stations, or equivalent.
- Completion of FAA Course FAA27100345, Fundamentals of Bilateral Aviation Safety Agreements for SAS Peer Groups 145F and H.
- Completion of electronic Learning Management System (eLMS) training on the applicable country MIPs or MAGs.

B. Coordination. This task requires coordination with:

- The CH.
- The applicable ASI.
- The FAA National Coordinator (AFS-300).
- The FAA Coordinator (AFS-300).
- The FAA International Visitor Program.

6-9-28-11 REFERENCES, FORMS, AND JOB AIDS.

A. References (current editions):

- Title 14 CFR Parts 43 and 145.
- Volume 2, Chapter 11, Certification of a Part 145 Repair Station.
- Volume 10, Safety Assurance System Policy and Procedures.
- Volume 14, Chapter 1, Section 2, Flight Standards Service Compliance Action Decision Procedure.
- The applicable MIP and MAG.

B. Forms:

- SIS Form for inspecting the U.S.-based AMO (refer to the MAG, Section A, Authority Interaction).
- SIS Form for inspecting the responsible Flight Standards office (refer to the MAG, Section A).

C. Job Aids. Job aids are included in the MAG as appendices.

6-9-28-13 FAA RESPONSIBILITIES.

A. Responsibilities of the FAA Coordinator (AFS-300). AFS-300 designates FAA Coordinators to serve as the primary point of contact (POC) between the responsible Flight Standards office and the partnering AA with whom the FAA has entered into a MIP. These AAs may include Switzerland's Federal Office of Civil Aviation (FOCA), Transport Canada Civil Aviation (TCCA), Civil Aviation Authority of Singapore (CAAS), European Union Aviation Safety Agency (EASA), United Kingdom of Great Britain and Northern Ireland (UK) Civil Aviation Authority (CAA), and future entrants. The designated FAA Coordinator (AFS-300) may elevate issues to the FAA National Coordinator (AFS-300), if deemed necessary. For the purpose of this guidance, the FAA Coordinator (AFS-300) should be familiar with the applicable MIP and MAG. The primary duty is to provide guidance and assistance to the Flight Standards (FS) office and the ASIs with regulatory interpretation, certification, renewals, and SIS coordination of repair stations located in the United States. Upon receiving a notice from an AA that an AA SIS team plans to visit a specific FS office, the FAA Coordinator (AFS-300) will:

1) Notify the responsible Flight Standards office of the schedule of the AA SIS team visit as soon as possible.

a) Schedule a meeting with the responsible Flight Standards office 30 to 60 days prior to the AA SIS team visit to review the nature of an SIS team inspection and the requirements of the MAG. The responsible Flight Standards office manager and ASIs who have oversight responsibilities of the selected AMO approvals should attend the meeting. The meeting should explain the AA SIS team expectations and the requirement for the ASIs to attend the AMO SIS audits, and advise the FS staff of the requirement for their presence at the AA SIS team in-briefings and out-briefings.

b) Confirm with management that ASIs with AA oversight have completed the initial and continuing/recurrent eLMS AA training.

NOTE: This meeting may be conducted virtually (e.g., by telephone or video conferencing) but should cover the information necessary to ensure the selected CHs, responsible Flight Standards office management, and ASIs are prepared to receive the AA SIS team. Discuss common SIS findings, AA supplement requirements, QA expectations, and renewal requirements.

2) The FAA Coordinator should forward the schedule to the FS office manager or Front Line Manager (FLM) POC. For AA SIS planning purposes, provide the AA SIS team POC with a listing of each repair station that holds that specific AA approval for that office. List, at a minimum, information such as the name of the repair station, the FAA and AA certificate numbers, and addresses.

3) Assist the AA SIS team in providing hotel and ground transportation information, if requested. AA inspectors will confirm their own reservations.

4) Contact the FAA National Coordinator (AFS-300), who may accompany the AA SIS team on its inspections.

5) Coordinate the visit with the responsible Flight Standards office and assist the FS POC in submitting the foreign visitor requests. The foreign visitor requests are submitted via the following FAA website: https://my.faa.gov/org/staffoffices/apl/offices/api/international_visitors_program.html. This should be done at least 10 calendar-days prior to the visit.

6) Attend the AA SIS team in-briefings and out-briefings at the responsible Flight Standards office.

7) Provide assistance to the AA SIS team concerning interpretations of FAA regulations or MAG requirements. Maintain your professional role as an intermediary during any discussions between the responsible Flight Standards office and the AA.

8) Provide feedback on the SIS inspection and make recommendations to the FAA National Coordinator (AFS-300) when needed.

9) Advise the FAA National Coordinator (AFS-300) when the responsible Flight Standards office recommends nonrenewal of a part 145 AMO certificate. Coordinate with the AA on what actions may be taken.

10) Forward communication between the AA and the responsible Flight Standards office/ASI when necessary.

11) Ensure the identified items are corrected according to the timeframe in the applicable MAG, or that a proposed corrective action plan (CAP) is acceptable to the responsible Flight Standards office and the AA.

B. Responsibilities of the ASI. ASIs should note that the AA conducts SIS inspections to determine compliance with the MIP/MAG. The FAA should offer coordination and assistance to the AA SIS team members to help them accomplish their tasks efficiently. The AA SIS team members may request the ASI to provide FAA policy or guidance information and repair station records/files. Other responsibilities of the ASI are as follows:

1) Notify the CH of the upcoming AA SIS team visit.

2) Ensure the AA SIS team will have unimpeded access to the CH's facility. If the CH requires additional information because of security issues, notify the AA so they can provide the information.

3) Arrange for the availability of a government vehicle during the inspections. AA representatives are authorized to travel as passengers in a government vehicle when accompanied by the FAA. In most cases, the AA provides for their own rental cars.

4) Accompany the AA SIS team during the inspection of the responsible Flight Standards office and at the CH's facility. Attend the in-briefings and out-briefings at the CH's facility.

5) Attend the responsible Flight Standards office in-briefing and out-briefing.

6) Address the SIS findings at the responsible Flight Standards office and at the CH's facility (as recorded on the SIS forms). Ensure the identified items are corrected according to the timeframe in the applicable MIP or MAG, and that a proposed CAP is acceptable to the FS office and the AA.

7) Ensure the FAA Coordinator (AFS-300) is aware of any events or issues that may arise.

6-9-28-15 TASK OUTCOMES.

A. Completion of the Task by the FAA Coordinator (AFS-300). Completion of this task will result in the following:

1) Attend the AA SIS team debriefings for both the CH and the responsible Flight Standards office.

2) Review the results of the AA SIS team inspection as recorded on the SIS forms.

3) Sign the SIS forms and provide copies of the forms to the FS office management.

4) Document the SIS audits and upload all pertinent forms and checklists associated with the SIS visit into the SIS Audit Tracking section in the AFS-300 International SharePoint at https://avssp.faa.gov/avs/afs300/340/SitePages/IntlHome.aspx.

5) If the AA SIS team identifies any discrepancies, monitor that the responsible Flight Standards office or AMO/repair station corrects those discrepancies within the specified time.

6) Coordinate communication between the responsible Flight Standards office, the AA, and the FAA National Coordinator (AFS-300). This ensures that there is written corrective action for any deficiencies on the SIS forms and ensures the CH corrects any deficiencies noted. It is important that a continuous two-way line of communication be developed and maintained to mitigate deficiencies according to the timeframe in the applicable MAG.

NOTE: The CH's corrective actions, or acceptable CAP, should address each identified item, follow-up actions, and any requested extensions.

7) Review the AMO/repair station's CAP and forward the CAP with any FAA written acceptance of the CAP to the AA.

NOTE: A CAP documents the corrective action(s) performed by the AMO/repair station. The CAP should address each finding, corrective action, follow-up action, and any requested extensions. The CAP should be monitored by the FAA Coordinator and FS office to ensure the discrepancies are mitigated. Forward the FS office correction memorandum to the AA.

8) Provide a copy of all CAPs from the AMOs/repair stations and the FS office corrective actions to the FAA National Coordinator (AFS-300) and upload the CAPs document and any comments into the SIS Audit Tracking section of the AFS-300 International SharePoint at https://avssp.faa.gov/avs/afs300/340/SitePages/IntlHome.aspx.

9) Perform the above steps within the timeframe specified within the MIP/MAG of the SIS visit. The FAA Coordinator (AFS-300) will coordinate the CAP with the AA for its acceptance.

10) Forward a copy of any correspondence from the AA regarding a specific AMO/repair station to its applicable ASI and the FAA National Coordinator (AFS-300).

B. Completion of the Task by the ASI. The ASI is responsible for the following tasks:

1) At the end of the AA SIS team inspection, ensure that the AA briefs an appropriate AMO/repair station representative on the deficiencies. Ensure that the AMO/repair station promptly corrects the identified items.

2) Review the results of the AA SIS team inspection by obtaining a copy of the SIS form from the FAA Coordinator (AFS-300). Consider any systemic issues or trends for further follow-up action.

3) Follow Volume 10 SAS guidance for Data Collection and Data Reporting [Module 4]. Upload supporting documents and the "Inspector Actions Taken" into the DCT.

4) Enter CH discrepancies into SAS.

5) File any required supporting paperwork in the CH's office file.

6) Update the Vitals Information tab in the SAS Configuration Module, as required. Ensure the AA certificate number and renewal date are documented.

7) Ensure the CH submits the SIS corrective actions directly to the responsible Flight Standards office.

a) The CH should address the identified items noted by the AA SIS team according to the timeframe in the applicable MAG. The applicable MAG lists the agreed-upon time.

b) If the CH fails to correct the identified items, or fails to provide the FAA with an acceptable CAP within the allotted timeframe, the ASI must contact the FAA Coordinator (AFS-300) for further action in accordance with the MAG.

8) If necessary, inspect the CH to ensure corrective action is closed and acceptable actions were taken.

9) Complete the required forms to recommend closure of the SIS items to the AA, and forward copies of the corrective actions to the FAA Coordinator (AFS-300). The AA may notify the FAA if further details are required to determine satisfactory risk mitigation for SIS closure.

10) Once the AA accepts the FAA's recommendation to close the SIS-identified items, provide written correspondence to the CH acknowledging the corrective action is satisfactory. This step ensures documented closure action of the SIS.

C. Completion of Task by Responsible Flight Standards Office Management. The FS office management is responsible for the following:

1) Ensure discrepancies resulting from the AA SIS team inspection are closed within timeframes identified in the MAG.

2) Ensure a cover memorandum addresses any findings recorded on the SIS forms. Ensure the memorandum is forwarded to the FAA Coordinator (AFS-300) for closure.

D. Compliance and Enforcement Action. If safety issues and/or regulatory noncompliance are identified, follow the process contained in Volume 14, Chapter 1, Section 2 to determine the appropriate FAA compliance or enforcement action.

6-9-28-17 FUTURE ACTIVITIES. Follow the MAG procedures and Volume 10 SAS guidance to plan future risk-based surveillance.

6-9-28-19 through 6-9-28-33 RESERVED.